

Global Music Rights, LLC
Response and Comments to the Development of An Artificial Intelligence Action Plan

Global Music Rights, LLC is a performing rights organization (PRO) whose purpose is to represent top-tier songwriters and composers in the performing rights marketplace. We are committed to protecting the integrity of music rights and promoting the value of intellectual property on behalf of creators. We endorse the following guiding principles as the basis for establishment of legislative safeguards for human music creators in the age of generative artificial intelligence (“GenAI”).

1. GenAI has both the capacity to enhance human musical expression and public enjoyment of the musical arts, or if not properly governed by law, to cause longstanding, crushing and potentially existential damage to American musical creativity, commerce and culture.
2. There is a fundamental difference between artificial intelligence (“AI”) tools and technologies used by humans to assist in advancing human musical creativity, and GenAI Systems designed to operate without meaningful human curation in using existing copyrighted works as the basis for manufacturing derivatives.
3. In order to preserve American musical commerce and culture (which for over a century has produced by far the world’s leading repertoire of musical works), human creators of such works must be guaranteed by law the unambiguous, exclusive, *sui generis* rights (a) to control the use of their works in all GenAI contexts related to ingestion, manipulation and output, and (b) to be fairly compensated and credited for all such uses.
4. Such *sui generis* rights should include the authority to collectively negotiate licenses for the use and payment of royalties for all copyrighted musical works inputted into so-called GenAI “training” systems, the payment of royalties on all output generated by such systems, and the continuation of liability for copyright plagiarism under existing laws.
5. Such *sui generis* rights shall be deemed to have vested at the time of creation of a musical work solely in the work’s human creators, including human creators of works made for hire, and such rights may only be conveyed in a written instrument executed by such human author or his/her heirs after the effective date of the establishing legislation. Such conveyance shall thereafter be subject to termination pursuant to the terms set forth in section 203 of the US Copyright Act.
6. There should be legislative clarification that unlicensed ingestion, manipulation and output of copyrighted works by GenAI systems presumptively fall(s) outside the boundaries of the US fair use doctrine. It should further be made clear that the creative and remunerative rights of human creators established by law are to be favored over the economic and other desires of those seeking to supplant human creators and their works by technological means.
7. Any party making use of GenAI systems should be required by law to keep, maintain and retain complete and accurate records of every copyrighted musical work utilized in the

training and/or ingestion process dating back to day one of system initiation, and full details of all subsequent output uses.

8. In order to qualify as copyrightable, a musical work should have been created by a human author(s) whose level of curation over the creative process, among other criteria, rises far above the level of mere prompts requesting incorporation of artificially produced stylistic influences (whether lyrical or musical).
9. Strict guidelines concerning the mandatory use and preservation of metadata should be included in governing legislation.
10. It is a commercial and cultural imperative that legislative action in regard to the governance of GenAI systems should be prompt, in recognition of the speed in which technological advances are proceeding in the GenAI sector.

Signed,

Randy Grimmett
Chief Executive Officer
Global Music Rights, LLC